

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, June 7, 2021 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman R. Dan Brummitt, Vice-Chairman Leo Kelly, Jr., Commissioners Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: None.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Commissioner Gordon Wilder gave the invocation.

Public comments were heard first. Ms. Kelly Pendley spoke in support of the Sheriff's Office receiving more funding to combat the drug problem in Vance County. She stated that she lost her son to drugs just six months ago. She noted that he had been in jail for seven weeks and when he was released, he tried to get help with his drug addiction but was turned away from a rehab center because he had been clean for seven weeks. She stated that improvements need to be made in this area and if her son had not been turned away, he may still be alive today. She stated that she would like to be more involved in helping with this problem. Chairman Brummitt offered to get her in touch with the appropriate person with the Cardinal Innovations Consumer and Family Advisory Council. He stated she would be a good addition to that agency.

Cindy Ehlers, Trillium Health Resources, stated that with the consolidation of Vaya Health and Cardinal Innovations Healthcare, Trillium Health is interested in becoming Vance County's Local Management Entity – Managed Care Organization (LME-MCO) which would manage the care of beneficiaries who receive services for mental health, developmental disabilities and substance use disorders. She provided information on what Trillium offers and asked the board to consider Trillium during the transition.

At this time, Chairman R. Dan Brummitt reconvened the Board of Equalization and Review to hear from any residents who feel their property is incorrectly listed or appraised. As there was no one present who wished to appeal, Chairman Brummitt adjourned the Board of Equalization and Review.

Mr. Frankie Nobles, Vance County Employee Engagement Team Chair, appeared before the board to recognize the new employee of the month. He noted that employees are nominated by their peers and this month's recognition goes to Beth Heaton with the Vance County Department of Social Services. He stated that Ms. Heaton began working with DSS in February 2011 through July 2016 when she needed to leave to care for a loved one. She returned in November 2020 and has been an excellent employee since then. Her peers noted that she goes above and beyond her duties, is a positive influence on her co-workers, and is always willing to help when needed. Ms. Heaton will receive a \$100 gift card and a designated parking space for the month. Ms. Heaton was presented with a certificate of appreciation and the board congratulated her on receiving this recognition.

As advertised, a public hearing was held to receive public comments on the proposed allocation of funds for economic development within Vance County. The proposed budget allocates a total of \$238,830 including \$170,038 for personnel, \$20,000 for marketing/advertising, \$36,832 for operations cost (supplies, equipment rental, insurance, etc.), \$700 for professional dues/memberships/subscriptions, and \$11,260 for office space to be used to promote development and infrastructure improvements in Vance County. Further, the proposed budget allocates \$55,000 to Kerr-Tar Regional Economic Development for administration of the Vance County Triangle North hub site.

As there was no one present who wished to speak on this matter, Chairman R. Dan Brummitt declared the public hearing closed.

As advertised, a public hearing was held to gain citizen input on the FY 2021-2022 proposed budget. County Manager Jordan McMillen stated that staff has prepared a budget ordinance based upon input from the board at the last budget work session. The ordinance includes all items within the manager's recommended budget as well as changes made during the last work session to include the following:

1. Adjustment to starting salaries/ranges and retirement at the jail - \$138,864 increase
2. Converted salary progression plan and COLA to a 4% COLA - \$10,698 increase
3. Adjusted JCPC budgeted line items based upon JCPC Board's approval (May 20, 2021) of program funding – \$9,987 increase
4. Central Services – Added county salary study - \$30,000 increase
5. Retiree Insurance benefits reduced based on actuals - \$10,000 reduction
6. Solid Waste Fund – increased household collection rate from \$117 to \$120

He noted that as a result of these changes, the recommended general fund budget increases from \$51,474,132 to \$51,655,000 with a total of \$1,994,887 appropriated from fund balance to

balance the budget. There is a separate budget ordinance for the water system to be adopted by the water board. He noted that the board provided the public an opportunity to weigh in on the budget during the January 2021 meeting and has met the statutory authority by providing a public hearing at the June 7, 2021 meeting as well. Staff would like to provide this as an opportunity for the board to discuss final adjustments and/or finalization of the FY 2021-2022 budget. He recommended that board approve the FY 2021-2022 Budget Ordinance, updated salary schedule, and the FY 2024-2026 Capital Improvements Plan to be effective July 1, 2021.

Commissioner Carolyn Faines stated that she had a constituent request that the solid waste convenience sites be re-opened on Sundays since the solid waste household fee was increased.

As there was no one from the public who wished to speak on this matter, Chairman R. Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the FY 2021-2022 Budget Ordinance, updated salary schedule, and the FY 2024-2026 Capital Improvements Plan.

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Vance County, North Carolina
FY 2021-22 Budget Ordinance

BE IT ORDAINED by the Board of Commissioners of Vance County, North Carolina, meeting this 7th day of June, 2021, that revenues and expenditures are hereby appropriated for the operation of Vance County government and its related activities for the fiscal year beginning July 1, 2021, and ending June 30, 2022, according to the following summaries and schedules:

SECTION 1. GENERAL FUND (10)

The following amounts are hereby appropriated in the General Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized by Departments:

Department	Amount
410 - Governing Body	312,364
430 - Elections	274,347
440 - Administration/Finance	999,316
450 - Tax Department	738,123
470 - Legal Services	66,114
480 - Register of Deeds	413,193
490 - Information Technology	325,290
491 - Economic Development Commission	240,787
500 - County Administration Building	231,963
501 - County Office Building	80,020
502 - Henry A. Dennis Building	76,791
504 - Senior Center	51,293
505 - Courthouse	555,451
506 - Social Services Building	116,570
510 - Sheriff's Office	5,101,787

514 - Justice Assistance Grant	7,000
517 - Sheriff's Interdiction Program	5,000
518 - School Resource Officers	327,767
519 – Eaton Johnson Building	653,245
520 - Jail	4,340,490
525 - Environmental Services	90,000
530 - EMS	3,465,853
531 - Fire	1,300,093
532 - Fire Marshal	89,516
541 - Planning & Development	637,563
555 - Central Services	803,766
576 - Soil & Water Conservation	121,225
580 - Mental Health	278,967
590 - Public Health	850,701
599 - Animal Control	599,084
600 - Contributions to Other Agencies	1,951,301
601 - Smart Start Program - Cooperative Extension	76,074
604 - Cooperative Extension - 4-H	13,000
605 - Cooperative Extension Services	184,541
607 - Veterans Service	132,511
610 - Social Services	9,427,668
611 - Program on Aging	741,879
613 - DSS - Vending/Foster Care Contributions	3,000
615 - Nutritional Meals Program	117,672
619 - Youth Services - NYPUM	153,993
620 - Friends of Youth	84,427
621 - 911 Emergency Communications	1,631,489
622 - Farmers Market	41,271
681 - Schools - Current Expense	8,482,440
Schools - Capital Outlay	625,000
683 - Community College - Current Expense	1,149,698
Community College - Capital Outlay	41,220
Financing for Parking Lot	41,013
696 - Transfers to Other Funds	3,453,124
999 - Contingency	150,000
General Fund Expenditures - Grand Total	51,655,000

It is estimated that the following revenues will be available in the General Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Department	Amount
301 - Ad Valorem Taxes	25,083,725
315 - Vehicle Rental Taxes	32,500
325 - Privilege Licenses	2,750
329 - Investment Earnings	152,000
332 - Animal Control Fees	130,100
333 - Cooperative Extension Revenues	11,500
334 - 4-H Revenues	5,500
342 - Planning Fees	27,000
345 - Local Government Sales Tax	10,029,178
346 - State Revenues	166,600
347 - ABC Revenues <i>*ABC Revenues are to be used for the treatment of alcoholism or substance abuse, or for research or education on alcohol or substance abuse</i>	152,000
348 - DSS State Revenues	6,156,491
349 - DSS Federal Revenues	431,610
350 - DSS Local Revenues	46,000
353 - Federal Revenues	59,000

356 - Register of Deeds Revenues	426,712
357 - Inspection Fees	300,000
358 - Jail Revenues	351,100
359 - Sheriff Revenues	259,100
360 - Ambulance Revenues	2,053,600
367 - Refunds & Reimbursements	488,120
369 - Revenue from City of Henderson	1,005,274
370 - Miscellaneous Revenues	1,108,324
380 - Grants	365,462
397 - Transfers from Other Funds	816,467
399 - Fund Balance Appropriated	1,994,887
General Fund Revenues - Grand Total	\$ 51,655,000

SECTION 2. FACILITIES FEES FUND (17)

The following is hereby appropriated in the Facilities Fees Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Operating Expenditures	80,100
Total Expenditures - Facilities Fees	\$ 80,100

It is estimated that the following revenues will be available in the Facilities Fees Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	100
Court Fees	80,000
Total Revenues - Facilities Fees	\$ 80,100

SECTION 3. DEBT SERVICE FUND (20)

The following is hereby appropriated in the Debt Service Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account/Debt Satisfaction Date	Amount
USDA Debt Service Reserve – Animal Shelter	8,003
Lease Payment Principal – VGCC (2030)	68,000
Lease Payment Interest – VGCC (2030)	7,683
Lease Payment Principal – Animal Shelter (2047)	43,472
Lease Payment Interest – Animal Shelter (2047)	36,533
Lease Payment Principal – 2017 CIP Projects (2032)	110,500
Lease Payment Interest – 2017 CIP Projects (2032)	12,485
Total Expenditures - Debt Service	\$ 286,696

It is estimated that the following revenues will be available in the Debt Service Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	500
Transfer from General Fund	286,196
Total Revenues - Debt Service	\$ 286,696

SECTION 4. DEBT SERVICE FUND - SCHOOLS (21)

The following is hereby appropriated in the Debt Service Fund - Schools for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account/Debt Satisfaction Date	Amount
2019-24 CIP Projects Principal – estimated	409,413
2019-24 CIP Projects Interest – estimated	136,233
Qualified Zone Academy Bonds - Schools (2022)	101,864
Elementary School - Principal (2030)	671,500
Elementary School - Interest (2030)	75,870
Qualified School Construction Bonds (2026)	261,622
Qualified School Construction Bonds – Interest (2026)	66,583
Qualified Zone Academy Bonds - Schools (2028)	123,155
Total Expenditures - Debt Service Schools	\$ 1,846,240

It is estimated that the following revenues will be available in the Debt Service Fund - Schools for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Transfer from Capital Reserve - Schools	1,846,240
Total Revenues - Debt Service Schools	\$ 1,846,240

SECTION 5. SOLID WASTE ENTERPRISE FUND (30)

The following is hereby appropriated in the Solid Waste Enterprise Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Operating Expenses - Solid Waste Management	2,514,715
Total Expenditures - Solid Waste Management	\$ 2,514,715

It is estimated that the following revenues will be available in the Solid Waste Enterprise Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Solid Waste Household User Fees	2,280,000
Other Fees & Taxes	111,300
Grants	5,000
Miscellaneous Revenues	75,000
Contributions from General Fund (Salary Progression Plan)	0
Fund Balance Appropriated	43,415
Total Revenues - Solid Waste Management	\$ 2,514,715

SECTION 6. REAPPRAISAL RESERVE FUND (40)

The following is hereby appropriated in the Reappraisal Reserve Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Octennial Reserve - Year 2024	439,200

Total Expenditures - Reappraisal Reserve	\$ 439,200
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It is estimated that the following revenues will be available in the Reappraisal Reserve Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	500
Contributions from General Fund	48,000
Fund Balance Appropriated	390,700
Total Revenues - Reappraisal Reserve	\$ 439,200

SECTION 7. RETIREMENT/PENSION RESERVE (41)

The following is hereby appropriated in the Retirement/Pension Reserve Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Separation Allowance - Certified Law Enforcement Officer	330,000
Fringe Benefits - Retiree Insurance	0
Total Expenditures - Retirement/Pension Reserve	\$ 330,000

It is estimated that the following revenues will be available in the Retirement/Pension Reserve Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	0
Fund Balance Appropriated	330,000
Total Revenues - Retirement/Pension Reserve	\$ 330,000

SECTION 8. SPECIAL FIRE TAX FUND (43)

The following is hereby appropriated in the Special Fire Tax Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Telephone/Postage (Verizon Service for MDTs)	12,000
Contracted Services - Financial Reviews	11,000
Tax Refunds	500
Capital Outlay (Radios purchase)	114,000
Administrative Fees	2,000
Kerr Lake/Golden Belt Merger - Substation Debt	33,900
Volunteer Assistance <i>*Includes reimbursable funding for up to two positions at all VFDs with exception of Epsom which gets one (15 total positions - Up to \$43,663 per position which includes VFD's portion of Fed and State withholding taxes and estimated Workman's Comp insurance)</i> <i>**Funding provided for up to 60 hours per week</i>	654,945
Contributions to Fire Departments (\$100,000 to all depts.)	900,000
Rotating Capital Proceeds (Townsville)	30,000
Total Expenditures - Special Fire Tax	\$ 1,758,345

It is estimated that the following revenues will be available in the Special Fire Tax Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Fire Tax	1,656,495
Fund Balance Appropriated	101,850
Total Revenues - Special Fire Tax	\$ 1,758,345

SECTION 9. ROOM OCCUPANCY TAX (45)

The following is hereby appropriated in the Room Occupancy Tax Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Operating Expenses - Tourism Development	372,117
Total Expenditures - Room Occupancy Tax	\$ 372,117

It is estimated that the following revenues will be available in the Room Occupancy Tax Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Room Occupancy Tax Proceeds	354,617
Investment Earnings	150
Miscellaneous Revenues	17,350
Contributions from General Fund (Salary Progression Plan)	0
Total Revenues - Room Occupancy Tax	\$ 372,117

SECTION 10. ECONOMIC DEVELOPMENT PROJECT FUND (47)

The following is hereby appropriated in the Economic Development Project Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Special Projects	1,720,849
Horner Trust (Restricted Revenue)	96,408
Total Expenditures - Economic Dev. Project Fund	\$ 1,817,257

It is estimated that the following revenues will be available in the Economic Development Project Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Middleburg Loan Payback	3,600
Lease Proceeds	110,249
Horner Trust	96,408
Income/Payback from School Purchase/Land Purchase	1,607,000
Total Revenues - Economic Development Project Fund	\$ 1,817,257

SECTION 11. CAPITAL RESERVE FUND - SCHOOLS (60)

The following is hereby appropriated in the Capital Reserve Fund - Schools for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Special Projects	209,440
Transfer to General Fund - Capital Outlay (Schools)	625,000
Transfer to Debt Service - Fund 21 (School Debt)	1,846,240
<i>Total Expenditures - Capital Reserve Fund - Schools</i>	\$ 2,680,680

It is estimated that the following revenues will be available in the Capital Reserve Fund - Schools for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	100
QSCB Interest Reimbursement	83,195
Lottery Proceeds	384,535
½ Sales Tax - 30% Schools	789,357
½ Additional Sales Tax Schools	1,423,493
<i>Total Revenues - Capital Reserve Fund - Schools</i>	\$ 2,680,680

SECTION 12. CAPITAL RESERVE FUND - GENERAL (61)

The following is hereby appropriated in the Capital Reserve Fund - General for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Special Projects	752,000
<i>Total Expenditures - Capital Reserve Fund - General</i>	\$ 752,000

It is estimated that the following revenues will be available in the Capital Reserve Fund - General for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	2,000
Transfer from General Fund	750,000
<i>Total Revenues - Capital Reserve Fund - General</i>	\$ 752,000

SECTION 13. EMERGENCY TELEPHONE SYSTEM - WIRELESS FUND (71)

The following is hereby appropriated in the Emergency Telephone System - Wireless Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Emergency Communications	156,000
Capital Outlay	285,000
<i>Total Expenditures - Emergency Telephone System - Wireless Fund</i>	\$ 441,000

It is estimated that the following revenues will be available in the Emergency Telephone System - Wireless Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Investment Earnings	1,000
Surcharge - 911 ETS Funds	178,934
Fund Balance Appropriated	261,066
Total Revenues - Emergency Telephone System - Wireless Fund	\$ 441,000

SECTION 14. CONTRIBUTIONS FROM GENERAL FUND TO OTHER FUNDS

(These monies are transferred from the General Fund to other funds and are *deducted* in final computations inasmuch as they are included in other funds.)

Other Funds (10-696)	Amount
Debt Service (20)	286,196
Reappraisal Reserve (40)	48,000
Capital Reserve - Schools (60) Sales Tax Proceeds	2,212,850
Capital Reserve - General CIP (61)	750,000
Water Fund (16)	156,078
Room Occupancy Tax (45)	0
Total Contributions to Other Funds	\$ 3,453,124

SECTION 15. TOTAL BUDGET

GRAND TOTAL EXPENDITURES AUTHORIZED	\$ 61,520,226
GRAND TOTAL REVENUES ANTICIPATED	\$ 61,520,226

SECTION 16. BUDGET SUMMARY

Fund	Amount
(10) General Fund	51,655,000
(17) Facilities Fees Fund	80,100
(20) Debt Service Fund	286,696
(21) Debt Service - Schools Fund	1,846,240
(30) Solid Waste Enterprise Fund	2,514,715
(40) Reappraisal Reserve Fund	439,200
(41) Retirement/Pension Reserve Fund	330,000
(43) Fire Tax Fund	1,758,345
(45) Room Occupancy Tax Fund	372,117
(47) Economic Development Project Fund	1,817,257
(60) Capital Reserve - Schools Fund	2,680,680
(61) Capital Reserve - General Fund	752,000
(71) Emergency Telephone System Fund	441,000
Budget Subtotal	64,973,350
Less: Contributions from General Fund to Other Funds	-3,453,124
Budget Grand Total	\$ 61,520,226

SECTION 17. PUBLIC SCHOOLS

A. Capital Outlay

Appropriations to Capital Outlay - Schools are allocated by project pursuant to NCGS 115C-419B. Any amendments that increase or decrease expenditures among line items within the Capital Outlay appropriation by more than ten percent (10%) from the amount contained in this Budget Ordinance or by subsequent action must receive prior approval by the Board of Commissioners. The reserved amount will be distributed upon receipt and approval of school projects by the Board of County Commissioners. No Capital Outlay funds may be expended until itemization of such funds is approved by the Board of Commissioners.

Account	Amount
Capital Outlay	425,000

Technology Upgrades	200,000
Total Capital Outlay	\$ 625,000

B. Current Expense

Account	Amount
Current Expense (\$1,230,000 earmarked for teacher supplements)	8,482,440
Total Current Expense - Public Schools	\$ 8,482,440

Total Capital Outlay and Current Expense:

Account	Amount
Total Public School Appropriation (Excluding Bonds and Long-Term Indebtedness)	\$ 9,107,440

SECTION 18. TOURISM DEVELOPMENT

The County of Vance established a Tourism Development Authority, effective January 1, 2002. Room Occupancy Tax proceeds generated from the six percent (6%) tax are controlled by the Vance County Tourism Development Authority, with fiscal accounting of such funds performed by the County Finance Director. Such funds are included in this budget ordinance for accounting purposes although under the direct control of the Tourism Development Authority.

SECTION 19. MILEAGE REIMBURSEMENT RATE

The County reimbursement for private vehicle mileage expense in the conduct of official business is set at the standard mileage rate issued by the Internal Revenue Service.

SECTION 20. METHOD OF LEVY

The tax levy is based on the single levy method. Under this method all taxes are levied for the General Fund, except the Special Fire Tax, which in turn will generate the required revenues in other funds through contributions to those funds. Other revenues will also be received in the General Fund and will comprise the Contributions to Other Funds.

SECTION 21. TAX RATES

A. Property Tax

An ad valorem tax rate of 89.0¢ per \$100.00 at full valuation is hereby set as the official tax rate for the County of Vance for the fiscal year beginning July 1, 2021 and ending June 30, 2022. This rate is based on a total estimated valuation of \$2,762,934,428 (99% of base) and an estimated rate of collection of 96.68%, which is the actual tax collection rate for FY 2019-20.

B. Special Fire Tax

The official tax rate for the defined Special Fire Protection Service District in Vance County will be 8.9¢ per \$100 of full valuation for the fiscal year beginning July 1, 2021 and ending June 30, 2022. This rate is based on a total estimated valuation of \$1,860,644,230 (99% of base) with an estimated collection rate of 96.68% which does not exceed the actual tax collection rate for FY 2019-20 or the Special Fire Protection Service District.

C. Solid Waste User Household Fee

There is hereby levied for the fiscal year beginning July 1, 2021 and ending June 30, 2022 a Solid Waste Household User Fee (SWHUF) of \$120.00 per household. The

SWHUF shall be assessed on all residential dwelling units in Vance County including those located inside the city/town limits of Henderson, Kittrell, and Middleburg.

SECTION 22. FEES FOR SERVICES

Charges for services and fees by Vance County departments, excluding those established by State Statute, are levied in the amounts set forth in the attached Fee Schedule (Attachment 1). Charges for services and fees are subject to change during the fiscal year by action of the Vance County Board of Commissioners.

SECTION 23. COUNTY MANAGER AUTHORITY

The County Manager is hereby authorized to execute contractual documents for services, goods, or construction repairs valued at \$10,000 or less as long as expenditures are within budgeted appropriations. All applicable federal, state, and/or local purchasing and procurement regulations must be followed.

SECTION 24. DISPENSATION

Copies of this Budget Ordinance shall be furnished to the Finance Director and to the County Manager as Budget Officer of Vance County for direction in executing official duties as prescribed by law.

Adopted this 7th day of June, 2021.

**R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners**

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Water District Board

Chairman R. Dan Brummitt called the Water District Board to order.

As advertised, a public hearing was held to gain citizen input on the FY 2021-2022 proposed budget of the Vance County Water District.

Commissioner Thomas S. Hester, Jr. suggested that the board look into lowering the sign-up costs sometime in the future, and/or provide some type of incentive for residents to sign up for water.

As there was no one from the public who wished to speak on this matter, Chairman R. Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Gordon Wilder to approve the FY 2021-2022 Water District Budget as presented. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

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BE IT ORDAINED by the Board of the Vance County Water District meeting this 7th day of June, 2021, that revenues and expenditures are hereby appropriated for the operation of Vance County Water District and its related activities for the fiscal year beginning July 1, 2021 and ending June 30, 2022 according to the following summaries and schedules:

SECTION 1. WATER ENTERPRISE FUND (16)

The following is hereby appropriated in the Water Enterprise Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

A. Expenditures Authorized:

Account	Amount
Operating Expenditures	721,010
Debt Service	545,868
Total Expenditures - Water Fund	\$ 1,266,878

It is estimated that the following revenues will be available in the Water Enterprise Fund for the fiscal year beginning July 1, 2021 and ending June 30, 2022:

B. Revenues Anticipated:

Account	Amount
Water Fees	1,050,000
Miscellaneous Revenues	60,800
Transfer from General Fund	156,078
Appropriated Fund Balance	0
Total Revenues - Water Fund	\$ 1,266,878

SECTION 2. FEES FOR SERVICES

Charges for services and fees by the Vance County Water District, excluding those established by State Statute, are levied in the amounts set forth in the attached Fee Schedule (Attachment 1). Charges for services and fees are subject to change during the fiscal year by action of the Vance County Water District Board.

SECTION 3. DISPENSATION

Copies of this Budget Ordinance shall be furnished to the Finance Director and to the County Manager as Budget Officer of the Vance County Water District for direction in executing official duties as prescribed by law.

Adopted this 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

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The April 2021 monthly operations report was presented to the board for information.
Chairman Brummitt adjourned the water district board.

Committee Reports and Recommendations

Human Resources Committee – Position Reclassifications at Jail. County Manager Jordan McMillen stated that the committee (Faines, Taylor & Wilder) met Monday, May 10 to discuss potential solutions for staffing shortages and starting salaries at the jail. The committee reviewed

starting salaries and ranges for positions at the jail relative to surrounding counties and determined adjustments are necessary to remain competitive. The committee recommends increasing hiring rates and associated salary schedules for Detention Officer positions 7%, Detention Sergeant/Court Liaison/Food Supervisor/Jail Senior Maintenance Specialist positions 11%, Detention Lieutenant positions 16%, and Detention Center Captain positions 10% effective June 13, 2021. This will be absorbed in the existing year budget and when accounting for the vacant positions, FICA and retirement has an annual budget impact of \$138,864 which has been included in the draft FY2022 budget. In addition to recommending immediate adjustments to the salary scales, the committee recommended putting the salary progression plan on hold for the upcoming budget and increasing the compensation adjustment/COLA in the budget to 4% - \$10,698 additional budget impact. The immediate salary range increases coupled with the increased compensation adjustment will move Vance's starting scales in line with surrounding counties for detention officers. Lastly, to ensure salaries across the county are competitive and to determine appropriate incentives for hiring employees with added qualifications (degrees, certifications, specialized skill sets, etc.), the committee felt an overall salary study should be completed in the new budget year - \$30,000 budget impact. From the manager's recommended budget, the committee's recommendations have the following budget impacts:

- Immediate salary scale adjustments at jail = \$138,864 annually
- Forgoing salary progression plan and converting to 4% COLA = \$10,698 additional impact
- County salary study = \$30,000

Mr. McMillen stated that the committee was agreeable to these additional impacts on next year's budget and recommended these items be included in the FY2022 budget with the appropriation from fund balance being adjusted to accommodate the additional cost.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the salary scale adjustments at the jail increasing hiring rates and associated salary schedules for Detention Officer positions 7%, Detention Sergeant/Court Liaison/Food Supervisor/Jail Senior Maintenance Specialist positions 11%, Detention Lieutenant positions 16%, and Detention Center Captain positions 10% effective June 13, 2021.

Properties Committee – Eaton Johnson Project Update and Change Orders. Mr. McMillen stated that the committee (Brummitt, Kelly & Wilder) met Thursday, May 27 with the project architect to review three proposed change orders for the Eaton Johnson project. The committee was made aware that work within the building is wrapping up with flooring, ceiling

tiles, painting, and furniture nearly installed and complete. The contractor anticipates site work to continue over the next month and a half with overall completion of the project in mid to late July (weather permitting). The committee discussed the project budget, and staff informed the committee the project is approximately \$231,000 under budget. The committee was agreeable to using \$107,111 of this under run for the following three change orders.

- Replacement of three DX Split System HVAC units – two of the three units are inoperable, and the units are beyond life expectancy.
- Integration of unoccupied wings into HVAC controls – this will allow for controlling temperatures and humidity within unused portions of the building.
- Senior Center Modifications – this will create two walk up windows at the front desk area and ensure power and data is appropriate for PC hookups and a large printer.

Mr. McMillen noted that since the committee meeting, it was learned that more soil has been removed from the parking lot area than was planned, which may have a financial impact on the project. He suggested putting the senior center modifications on hold until we know how much more is needed for the parking lot project. The senior center modifications will still be done, just not immediately.

Motion was made by Commissioner Gordon Wilder to approve the first two change orders in the amount of \$81,983 which include replacement of three HVAC units and integrating the unoccupied areas into the HVAC system. This motion was seconded by Commissioner Thomas S. Hester, Jr.

Chairman Brummitt expressed his displeasure with additional soil being removed without the authority of the county's architect.

After discussion, vote on the motion to approve the first two change orders was ayes – six (6); noes – one (1), with the dissenting vote being cast by Commissioner Carolyn Faines.

Properties Committee – Tax Revaluation Timeline and Request for Proposals. Mr. McMillen reported that the committee met with the county's tax administrator and reviewed the timeline and a draft request for proposal (RFP) to engage a firm to complete the 2024 revaluation. Staff intends to release the RFP on August 30, 2021 and plans to present recommendations in November and December for selection of the firm. Work on the revaluation would begin in April 2022 and continue through September 2023 with the board adopting a new tax rate to begin in July 2024. The committee discussed the RFP which is seeking one price for a walk around method revaluation and a second price option for a full measure revaluation. Due to Vance County's low sales assessment ratio, the NC Department of Revenue is recommending a full measure

Finance Director's Report

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to authorize the staff to perform the necessary FY 2020-21 year-end budgeting and accounting transactions.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to adopt the following grant project ordinance establishing the budget for the county's American Rescue Plan Act funds.

BE IT ORDAINED by the Governing Board of the County of Vance, North Carolina, that, pursuant to N.C.G.S. Chapter 159-13.2, the following Project Ordinance to be known as the American Rescue Plan Project Ordinance is hereby adopted:

Section 2. The following revenues are anticipated to be available to complete this project.

Section 3. The following amounts are appropriated for the project:

American Rescue Plan Act Expenses	\$ 8,650,402
Total	8,650,402

Section 4. The Finance Director is hereby directed to maintain within the American Rescue Plan Act (ARPA) sufficient detailed accounting records to satisfy the requirements of the grantor agency, the grant agreements, and federal regulations.

Section 5. The Finance Director is hereby directed to insure the funds within the ARPA are only expended on authorized expenses, as set forth in the requirements of the grant, to include pandemic-related expenses, offsetting COVID-19 related negative economic impacts, replacement of lost/decreased/delayed revenues, water, sewer and broadband development, or other permissible uses as may be amended or added, within the time requirements and grant deadlines. Further all expenditures shall be done in a manner as required by all State and Federal requirements, as applicable.

Section 5. Funds may not be advanced from the General Fund for the purpose of making payments as due. Reporting will be made to the grantor agency in an orderly and timely manner.

Section 6. The Finance Director is directed to report, on a monthly basis, on the financial status of each project element in Section 4 and on the total grant revenues received or claimed

Section 7. The Budget Officer is directed to include a detailed analysis of past and future costs and revenues on this ARPA in every budget submission made to this Board.

Section 8. Copies of this ARPA ordinance shall be furnished to the Clerk to the Governing Board, and to the Budget Officer and the Finance Director for direction in carrying out the ordinance.

Adopted this the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

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2021 School CIP Ordinance and Reimbursement Resolution. Ms. Bigelow stated that the schools have been gathering quotes and have begun the process of executing the previously approved capital improvement project. The project ordinance and reimbursement resolution set the budget for the project and allows the county to start reimbursing the schools for projects completed. She requested the board to adopt the project ordinance as presented.

Motion was made by Commissioner Thomas S. Hester, Jr. to adopt the project ordinance and reimbursement resolution for various approved purchases under the Schools CIP. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

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**2021 Vance County Schools
Capital Improvements Project Ordinance**

BE IT ORDAINED by the Governing Board of the County of Vance, North Carolina, that, pursuant to N.C.G.S. Chapter 159-13.2, the following Project Ordinance to be known as the Schools Capital Improvement Project (CIP) Ordinance is hereby adopted:

Section 1. This project ordinance creates and authorizes the spending of Schools CIP Ordinance.

Section 2. The following revenues are anticipated to be available to complete this project.

Revenue (Received from Borrowing)	\$ 5,045,000
Total	5,045,000

Section 3. The following amounts are appropriated for the project:

School CIP Expenses	\$ 5,045,000
Total	5,045,000

Section 4. The Finance Director is hereby directed to maintain within the Schools CIP Ordinance sufficient detailed accounting records to satisfy the requirements of the grantor agency, the grant agreements, and federal regulations.

Section 5. The Finance Director is hereby directed to insure the funds within the Schools CIP are only expended on authorized expenses. Further all expenditures shall be done in a manner as required by all State and Federal requirements, as applicable.

Section 5. Funds may not be advanced from the General Fund for the purpose of making payments as due. Reporting will be made to the County Manager and Commissioners in an orderly and timely manner.

Section 6. The Finance Director is directed to report, on a monthly basis, on the financial status of each project element in Section 3.

Section 7. The Budget Officer is directed to include a detailed analysis of past and future costs and revenues on this capital project in every budget submission made to this Board.

Section 8. Copies of this capital project ordinance shall be furnished to the Clerk to the Governing Board, and to the Budget Officer and the Finance Director for direction in carrying out the ordinance.

Adopted this the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

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Surplus Property. Ms. Bigelow stated that the Emergency Management Department has a variety of old radio consoles, two old VIPER systems, and miscellaneous equipment that is being replaced by new equipment. Elections also has a table and desk that are no longer in use. The equipment needs to be declared as surplus.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the property presented as surplus and authorize the Finance Director to dispose of said property accordingly as allowed by state statute.

Description	Reason No Longer Needed	Department
VIPER System for Backup 911 Center	Replaced with Nexgen – new system	911
Five Radio Consoles	Replaced with Nexgen – new system	911
VIPER System for Primary 911 Center	Replaced with Nexgen – new system	911
Five Motorola XTL Consolettes	Replaced with new equipment	911
USP Battery System at Backup Center	Replaced with new equipment	911

Battery Backup	Replaced with new equipment	911
911 Center Server	Replaced with new equipment	911
Two HP DL360G7 Servers	Replaced with new equipment	911
Nexlog 740 Communications	Replaced with new equipment	911
Mapping Systems Upgrade	Replaced with new equipment	911
Main Electronics Bank	Replaced with new equipment	911
Folding Table	Old; no longer in use	Elections
Printer Desk	Old; no longer in use	Elections

County Manager’s Report

Surplus Property – Police K-9. County Manager Jordan McMillen stated that Sheriff Curtis Brame has requested that the board of commissioners declare K-9 Dave as surplus property and allow him to be sold to his handler, Sergeant Adam Hight for \$1.00. The animal has been experiencing dental issues that began over a year ago. Medical treatment is estimated to cost between \$5,000 and \$7,000 and due to his physical condition, K-9 Dave is no longer suitable for the Vance County Sheriff’s Office. Mr. McMillen presented an indemnity agreement and bill of sale with Sergeant Adam Hight for approval.

Motion was made by Commissioner Carolyn Faines to declare K-9 Dave as surplus county property, sell him to his handler Sergeant Adam Hight for a sum of \$1.00 and approve the indemnity agreement and bill of sale. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Approval of Road Name – Sail Way. Mr. McMillen explained that the county’s addressing ordinance adopted in 2019 requires board approval of road name changes. The roadway to be named is a gravel path that serves six vacant lots and was created in 1987 with the creation of the lakeside section of Pool Rock Plantation Subdivision. Finalizing the road name will allow the permitting process to proceed for the construction of the first home along the roadway. The county’s addressing coordinator is recommending approval of “Sail Way” as the road name.

Motion was made by Commissioner Gordon Wilder to approve the road name Sail Way. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Fireworks Permit – City of Henderson and Cokesbury Volunteer Fire Department. Mr. McMillen stated that the City of Henderson is requesting approval for a fireworks permit for a fireworks display at Fox Pond Park on Friday, July 2 (July 6 – rain date). The display will be handled by a professional pyrotechnics firm (Zambelli Fireworks Mfg. Co.) with the appropriate credentials and insurance coverage and the county fire marshal has approved the permit subject to board approval.

Mr. McMillen also noted that the Cokesbury Volunteer Fire Department is requesting approval of a fireworks permit for its annual Independence Day celebration on S. Cokesbury Road scheduled for Saturday, July 3 (July 10 – rain date). According to Cokesbury VFD Chief Adam Pegram, the work will be performed by two licensed and insured shooters. Cokesbury is asking for a waiver of the \$125 permit fee. The county fire marshal has approved the permit subject to board approval.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the request from the City of Henderson and Zambelli Fireworks Mfg. Co. for a permit to discharge fireworks at Fox Pond Park on Friday, July 2, 2021 (rain date – July 6); and approve the request from Cokesbury Volunteer Fire Department for a permit and fee waiver to discharge fireworks at its 2021 Independence Day celebration on S. Cokesbury Road.

Ambulance Franchise Applications – North State Medical Transport and North Central Medical Transport. Mr. McMillen noted that the board gave the first of two required approvals for North State Medical Transport’s ambulance franchise during the May 3 meeting. A second approval is necessary in accordance with NC General Statutes. North State’s application as submitted appears to meet all requirements of the county’s ambulance franchise ordinance.

The board also gave the first of two required approvals for North Central Medical Transport’s ambulance franchise during the May 3 meeting. A second approval is necessary in accordance with NC General Statutes. North Central’s application as submitted appears to meet all requirements of the county’s ambulance franchise ordinance.

Motion was made by Commissioner Gordon Wilder to approve and grant an ambulance franchise agreement allowing North State Investment Group, LLC, d/b/a North State Medical Transport to provide ALS and BLS service in Vance County in accordance with the county’s ambulance franchise ordinance; and to approve and grant an ambulance franchise agreement allowing North Central Medical Transport, Inc. to provide ALS and BLS service in Vance County in accordance with the county’s ambulance franchise ordinance. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Regional Stepping Up Initiative – Interlocal Agreement Extension. Mr. McMillen stated that the county has worked collaboratively with Franklin, Granville, Warren, and Halifax Counties since late 2016 to reduce the number of individuals with mental illnesses and substance use

disorders within our respective jails. The Granville-Vance District Health Department was brought on to facilitate the effort in 2017; telehealth psychologist and psychiatrist services were added at the jail in 2018 (Dr. Coy with Correctional Behavioral Health); telehealth therapy sessions were added in 2021; and in the coming year a social worker position is being considered to assist with linking inmates to services post incarceration. This effort has been highly successful bringing together detention officers, deputies, health professionals and mental health providers, EMS staff, judges, attorneys and county leaders who would not normally be collaborating around this common cause. The board was provided a resolution and agreement amendment extending this effort an additional five years. For the coming fiscal year, each county will contribute \$22,000 from maintenance of efforts funds previously allocated to Cardinal Innovations to fund the initiative. Vance County serves as the fiscal administrative and contracting entity with respect to the program.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the resolution authorizing an amendment to the inter-local agreement for the regional stepping up initiative in Franklin, Granville, Halifax, Vance and Warren Counties. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

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RESOLUTION
by the
VANCE COUNTY BOARD OF COMMISSIONERS
AUTHORIZING AN AMENDMENT TO INTERLOCAL AGREEMENT FOR
THE REGIONAL STEPPING UP INITIATIVE IN
FRANKLIN, GRANVILLE, HALIFAX, VANCE AND
WARREN COUNTIES

WHEREAS, each of the Participating Counties previously entered into a Interlocal Agreement (Agreement) for the establishment and operation of a Regional Stepping up Initiative Program; and

WHEREAS, the term of the original Agreement, unless terminated earlier, was through June 30, 2021; and

WHEREAS, pursuant to the terms of paragraph 7, the Agreement may be amended by mutual agreement adopted in the same manner prescribed for the adoption of the Agreement under Article 20, Chapter 160A of the N.C. General Statutes; and

WHEREAS, the original Agreement was never terminated and the Participating Counties desire to amend, renew and extend the term of the Agreement; and

WHEREAS, in furtherance of that effort, the Participating Counties propose to amend that certain “Interlocal Agreement - Regional Stepping Up Initiative Program”, a copy of which has been presented to the Board and is attached hereto;

NOW THEREFORE, BE IT RESOLVED, that the Vance County Board of Commissioners hereby authorize the execution of the aforementioned amendment to interlocal

agreement by the Chairman of the Board and any other county official or staff deemed necessary, in the form substantially as submitted, but with such minor or clerical amendments prior to execution as may be deemed necessary without further approval of the Board.

Adopted this 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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Rescue Squad Contract. Mr. McMillen stated that the county's existing contract with the rescue squad expires June 30, 2021. The draft agreement with proposed revisions has been provided to the rescue squad for review and comment. As a result of their comments, the agreement was extended from a one year renewal to a four year renewal to correspond with an anticipated future extension of the volunteer fire department contracts. They also raised a concern with providing personal information as a part of their roster submittal without consent of their members. The proposed changes as recommended by the manager are as follows:

1. Rescue squad requested and manager adjusted this from a one year renewal to a four year renewal through June 30, 2025 to match the same timeframe as volunteer fire department contract renewals.
2. Funds provided in advance on a quarterly basis instead of monthly basis as previously done for volunteer fire departments.
3. Removal of annual audit requirement allowing annual financial reviews as previously provided to volunteer fire departments.
4. Language to require the use and maintenance of mobile data terminals purchased for the rescue squad as previously done for volunteer fire departments.
5. Further defined what is to be included in annual submittal of roster to include addresses and relevant certifications for members.

Recommendation: Approve rescue squad contract subject to final attorney review.

The board discussed these recommendations and focused on Item 5. Chairman Brummitt and Commissioner Faines suggested that the submittal of a roster to include address and certifications be removed, and to add in receiving the roster that is provided to the workers compensation insurance company. This would assist in determining the active roster.

After further discussion, motion was made by Commissioner Carolyn Faines to approve Items 1 through 4 of the recommendation and include the submittal of the roster from the workers compensation insurance company. This motion was seconded by Commissioner Leo Kelly, Jr. The motion passed by a vote of ayes – three (3); noes – three (3); and one (1) abstention. The

dissenting votes were cast by Commissioners Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder. Commissioner Yolanda Feimster abstained.

County Attorney's Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during previous meetings, the board of commissioners approved the public sale process for Dorsey Avenue Lot – Parcel 0058 03002, Johnson Street Lot – Parcel 0071 04015, and 2817 Hwy 39 North – Parcel 0206 02016A. The properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Gordon Wilder seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the following resolutions accepting the bids for Dorsey Avenue Lot – Parcel 0058 03002, Johnson Street Lot – Parcel 0071 04015, and 2817 Hwy 39 North – Parcel 0206 02016A.

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,090.00** from **Terrence M. Foster** for the purchase and sale of County owned real property, which is more particularly described below:

Dorsey Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0058 03002.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **May 13, 2021** stating that said offer from **Terrence M. Foster** in the amount of **\$3,090.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Terrence M. Foster** in the amount of **\$3,090.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Johnson Street Lot, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0071 04015.**

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on April 5, 2021, a notice was published in the *Daily Dispatch* on **April 15, 2021**, stating that said offer by **Jon K. Brent** in the amount of **\$1,350.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **KC Legacy Group, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **April 24, 2021**, stating that said offer by **KC Legacy Group, LLC** in the amount of **\$2,100.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Jon K. Brent**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **May 4, 2021**, stating that said offer by **Jon K. Brent** in the amount of **\$2,850.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **KC Legacy Group, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **May 13, 2021**, stating that said offer by **KC Legacy Group, LLC** in the amount of **\$3,600.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Jon K. Brent**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **May 15, 2021**, stating that said offer by **Jon K. Brent** in the amount of **\$4,350.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Jon K. Brent** in the amount of **\$4,350.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit "A", is hereby accepted for the property described herein and the Board's Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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RESOLUTION ACCEPTING BID FOR COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$4,480.00** from **Matusalen Garcia Soto** for the purchase and sale of County owned real property, which is more particularly described below:

**2817 Hwy 39 North, Henderson, North Carolina 27536, Vance County Tax Department
Parcel Number 0206 02016A.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **May 6, 2021** stating that said offer from **Matusalen Garcia Soto** in the amount of **\$4,480.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Matusalen Garcia Soto** in the amount of **\$4,480.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

REO Properties – New Offers. Attorney Care stated that new offers have been received for real properties located at McBorn Street Lot – Parcel 0021 03014, 1262 Walters Street – Parcel 0051 12003, Ranes Drive Lot – Parcel 0055 01057, 129 Henry Street – Parcel 0055 05006 (two offers - \$2,276 and \$6,500), High Street Lot – Parcel 0071 01009, 1134 Washington Street – Parcel 0071 04005 (two offers - \$10,000 and \$12,000), and 962 Harriett Street – Parcel 0086 02004. Attorney Care stated that the board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolutions to begin the upset bid process for the properties. The properties are jointly owned with the City of Henderson, so any action will need to be contingent upon the city taking similar action. He suggested that the board take a separate action on the two properties that received two bids each (129 Henry Street and 1134 Washington Street).

Motion was made by Commissioner Gordon Wilder to approve the upset bid process for real property located at McBorn Street Lot – Parcel 0021 03014, 1262 Walters Street – Parcel 0051

12003, Ranes Drive Lot – Parcel 0055 01057, High Street Lot – Parcel 0071 01009, and 962 Harriett Street – Parcel 0086 02004, contingent upon the City taking similar action. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
McBorn Street Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **McBorn Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0021 03014**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$4,738.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Kevin Martinez-Galmiche**; and

WHEREAS, **Kevin Martinez-Galmiche** has paid the required deposit in the amount of **\$750.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions

for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
1262 Walters Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **1262 Walters Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0051 12003**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,185.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Veronica Antonio Nuez**; and

WHEREAS, **Veronica Antonio Nuez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
 FOR SALE OF REAL PROPERTY
 Ranes Drive Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Ranes Drive Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0055 01057**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,500.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Emma Marable**; and

WHEREAS, **Emma Marable** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

WHEREAS, Vance County owns certain real property with an address of **Lots 3 and 4, Block 18, High Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0071 01009**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,280.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Darrell K. Wilkerson**; and

WHEREAS, **Darrell K. Wilkerson** has paid the required deposit in the amount of **\$750.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time**.
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
962 Harriett Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **962 Harriett Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0086 02004**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,286.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Kevin Martinez-Galmiche**; and

WHEREAS, **Kevin Martinez-Galmiche** has paid the required deposit in the amount of **\$750.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition,

as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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Motion was made by Commissioner Gordon Wilder to approve the highest bid for the upset bid process for real property located at 129 Henry Street – Parcel 0055 05006 (\$6,500) and 1134 Washington Street – Parcel 0071 04005 (\$12,000), contingent upon the City taking similar action. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
Lot 5 Henry Street, Plat Book M, Page 55, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Lot 5 Henry Street, Plat Book M, Page 55, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0055 05006**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$6,500.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Ruben A. Rivas Garcia**; and

WHEREAS, **Ruben A. Rivas Garcia** has paid the required deposit in the amount of **\$750.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY**

Lot 16, Block D, Washington Street, Plat Book A, Page 2, Henderson, NC 27536

WHEREAS, Vance County owns certain real property with an address of **Lot 16, Block D, Washington Street, Plat Book A, Page 2, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0071 04005**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$12,000.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Saturnina Gonzalez Piedra**; and

WHEREAS, **Saturnina Gonzalez Piedra** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following consent agenda items as presented: Budget Amendment #28, Budget Transfer #10, April 2021 Tax Refunds and Releases, departmental monthly reports, and the minutes of the May 3, 2021 regular meeting.

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**Budget Amendment #28
FY 2020-2021
Social Services**

Revenue Amendment Request	Account Number	Revenue Increase (Decrease)
Meals on Wheels Grant	10-380-438014	9,900
Total Revenue Increase (Decrease)		\$ 9,900

Expenditure Amendment Request	Account Number	Expense Increase (Decrease)
Meals on Wheels NC	10-615-500238	9,900
Total		\$ 9,900

Purpose: Amending budget to show receipt of grant funds.

Authorization: Vance County Board of Commissioners
June 7, 2021

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**Budget Transfer #10
FY 2020-2021
Youth Services**

Transfer From:	Account Number	Amount
Special Contracted Services	10-619-500044	24,000
Total		\$ 24,000

Transfer To:	Account Number	Amount
Capital Outlay	10-619-500074	24,000
Total		\$ 24,000

Purpose: Utilizing remaining budgeted dollars as a grant match to purchase a 24-passenger activity bus.

Authorization: Vance County Board of Commissioners
June 7, 2021

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TAX OFFICE REFUND AND RELEASE REPORT FOR APRIL 2021

TAXPAYER NAME	TAX YR	REAL	PERSONAL	SOLID WASTE FEE	REASON
CROSS SAMUEL LEE	2020	0	10.92	0	PERS PROP BILLED
YARBOROUGH ANTHONY RAY	2020	0	49.64	0	PERS PROP BILLED
YARBOROUGH ANTHONY RAY	2020	0	3.24	0	PERS PROP BILLED
SUMNER HAROLD GRANT	2021	0	80.08	0	PERS PROP BILLED
TOTAL		0	143.88		
GRAND TOTAL	143.88				

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MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, EMS, Human Resources, Parks and Recreation, Planning and Development, Tax Collections and Veterans Service.

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Miscellaneous

Appointments. The following appointment was presented to the board for consideration:

Jury Commission – two year term
Reappoint Sandra Catherwood.

Vance-Granville Community College Board of Trustees – four year term
Appoint Jerry Ayscue to fill vacant position.

Chairman Brummitt noted that an additional application for the Vance-Granville Community College Board of Trustees was received late this afternoon, so this appointment was tabled until the July regular meeting.

Motion was made by Commissioner Thomas S. Hester, Jr. to reappoint Sandra Catherwood to the Jury Commission for a two year term. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

July Meeting Date. Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approving the following resolution changing the July 2021 meeting date from Monday, July 5, 2021 to Tuesday, July 6, 2021 due to the Independence Day Holiday:

RESOLUTION
by the
Vance County Board of Commissioners
Changing the Date of the July 2021 Commissioners' Meeting

WHEREAS, the Vance County Board of Commissioners normally holds its regular meetings on the first Monday of each month at 6:00 p.m.; and

WHEREAS, North Carolina General Statute 153A-40 provides that in the event the Board of Commissioners desires to change the date and time of a regular meeting, that the Board may do so by adopting a resolution at least ten (10) days before such meeting; and

WHEREAS, the Vance County Board of Commissioners desires to change its regular meeting scheduled for Monday, July 5, 2021 at 6:00 p.m. to Tuesday, July 6, 2021 at 6:00 p.m.

NOW, THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners that it does hereby change its regular meeting date from July 5, 2021 at 6:00 p.m. to July 6, 2021 at 6:00 p.m. at the usual place, the Commissioners' Conference Room, Vance County Administration Building, Henderson, NC.

BE IT FURTHER RESOLVED that a copy of this resolution is to be posted on the Administration Building bulletin board, and the news media within Vance County is to be made aware of this change.

This, the 7th day of June, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt Chairman

Appointment of NCACC Voting Delegate. Motion was made by Commissioner Thomas S. Hester, Jr. to appoint Commissioner Gordon Wilder as the voting delegate for the NCACC Annual Conference. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to enter into closed session to discuss a legal matter.

Upon return to open session, motion was made by Commissioner Gordon Wilder to approve the minutes of the May 3, 2021 closed session. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

As there was no further business, at 8:00 p.m., motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, that the meeting be adjourned.

Approved and signed July 6, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman